

24NNCV02694 24NNCV02694

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Case Number: 24NNCV02694 Hearing Date: September 18, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 18, 2026

DEMURRER

Los

Angeles Superior Court Case # 24NNCV02694

MP: Plaintiff/Cross-Defendant

David Dginguerian

RP: Defendants/Cross-Complainants

Harout Keuroghlian and JohnHart Corp.

NOTICE:

The Court is not
requesting oral argument on this matter. Unless the Court directs
argument in the Tentative Ruling, no argument is required. The tentative ruling will become the ruling
of the court if no argument is received.

ALLEGATIONS:

A.

Operative Complaint

Plaintiffs David

Dginguerian ("Dginguerian") and Dginger Group, LLC ("Dginger") allege that Dginguerian and Defendant Harout Keuroghlian ("Keuroghlian") entered into a Stock Purchase Agreement ("SPA") on January 24, 2014, whereby Dginguerian acquired a 23% ownership interest in Defendant JohnHart Corp. ("JHC") in exchange for \$300,000. (SAC, ¶¶1, 7-8.) Plaintiffs allege that the parties operated under the SPA, such that Keuroghlian issued business cards identifying Dginguerian as Senior Vice President of JHC, Dginguerian received Schedule K-1 forms through 2019 identifying him as a 23% owner, and he was on the payroll from February 2, 2014 to January 9, 2015 until the parties agreed to cease taking a salary and instead use the funds to grow JHC. (Id., ¶¶9-10.) On April 12, 2024, Dginguerian began questioning the lack of distributions from JHC and demanded access to JHC's books and records pursuant to the SPA. Keuroghlian refused the requests advising that Dginguerian held no ownership interest in JHC. (Id., ¶11.) Keuroghlian provided no explanation terminating the relationship between JHC and Dginguerian.

(Id.)

The Second Amended

Complaint ("SAC"), filed January 16, 2026, alleges: (1) Breach of Contract against all Defendants; (2) Breach of Contract by Dginguerian against all Defendants; (3) Breach of Fiduciary Duty by Dginguerian against Keuroghlian; (4) Fraud by Dginguerian against Keuroghlian and JHC; (5) Negligence by Dginguerian against Keuroghlian; (6) Accounting against Keuroghlian and JHC; (7) Declaratory Relief by Dginguerian against Keuroghlian and JHC; (8) Statutory Claim for Improper Disposition of Property – Violation of Penal Code, § 496 by Dginguerian against Keuroghlian and JHC; and (9) Conversion by Dginguerian against Keuroghlian and JHC.

B.

Cross-Complaint

On May 7, 2026,

Harout Keuroghlian and JohnHart Corp. ("Cross-Complainants") filed a Cross-Complaint against Dginguerian for: (1) Slander; (2) Libel; and (3) Declaratory Relief.

Cross-Complainants

allege that Keuroghlian is JHC's CEO and sole shareholder. (XC, ¶14.)

On January 24, 2014, Keuroghlian and Dginguerian entered into the SPA, wherein Dginguerian acquired 23 shares.

(Id., ¶5.) In early 2020,

Dginguerian voluntarily agreed to transfer and relinquish his shares in JHC back to Keuroghlian in exchange for being released from any obligation to personally guarantee JHC's business loans.

(Id., ¶6.) They allege

that following the transfers, Dginguerian lacked any ownership interest in JHC and from 2020 onward, JHC issued Schedule K-1 tax forms solely to Keuroghlian,

reflecting his ownership of 100 shares and 100% ownership. (Id., ¶7.) In May and June 2024, Dginguerian began making false statements to third parties claiming he remained an owner of JHC

and that Keuroghlian improperly denied him ownership interest. (Id., ¶8.) Cross-Complainants allege that written statements were published on Facebook on June 3, 5, and 10, 2024,

misrepresenting that he was a current owner of JHC and that Keuroghlian wrongfully excluded him. (Id.,

¶9(a)-(d).) They allege the statements

falsely represent that Dginguerian remained an owner of JHC and/or falsely

implied that Keuroghlian engaged in fraudulent or criminal conduct. (Id., ¶10.) In August 2025, Dginguerian also published additional written statements on Facebook that he was suing his partner for

fraud, that (nearly) everyone at JHC would be deposed, and that the truth would be revealed. (Id., ¶11.) In addition to written posts, Dginguerian

allegedly made oral statements to third parties, including business associates, clients, and/or potential clients, repeating false claims that he remained an owner and implying misconduct by Keuroghlian.

(Id., ¶12.)

MOTIONS ON CALENDAR:

On June 22, 2026, Dginguerian

filed a Demurrer and Motion to Strike portions of the Cross-Complaint. On September 3, 2026, Cross-Complainants filed oppositions. On September 11,

2026, Dginguerian filed a consolidated reply.

LEGAL STANDARD:

A.

Demurrer

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Id.)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank*, supra, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank*, supra, 39 Cal. 3d at 318.)

Pursuant to C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal. 4th 1074, 1082.)

B. Motion to Strike

Motions to strike are used to reach defects or objections to pleadings that are not challengeable by demurrer, such as words, phrases, and prayers for damages. (See C.C.P. §§ 435, 436, and 437.) The proper procedure to attack false allegations in a pleading is a motion to strike. (C.C.P. § 436(a).) In granting a motion to strike made under C.C.P. § 435, "[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any

pleading.” (C.C.P. § 436(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (C.C.P. § 431.10.)

The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (C.C.P. § 436(b).)

MEET AND
CONFER:

C.C.P. §§
430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Fisher Decl., ¶¶2-5.)

DEMURRER ANALYSIS:

Dginguerian demurs to the First and
Second Causes of Action in the Cross-Complaint on the grounds that they fail to state sufficient facts and are time-barred.

A.
Statute of
Limitations – Overruled

“Defamation constitutes an injury to reputation; the injury may occur by means of libel or slander. (Civ.Code, § 44.)” (Shively v. Bozanich (2003) 31 Cal.4th 1230, 1242.) The elements of a defamation claim are: (1) publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or cause special damage. (Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1369.) The elements of a libel claim are: (1) a written communication that (2) is false, (3) is unprivileged, and (4) exposes a person to contempt or ridicule or certain other reputational injuries. (Shively, supra, 31 Cal.4th at 1242 [citing Civ. Code, §45].) The elements of a slander claim are: (1) an oral communication that is (2) false, (3) unprivileged, and attributes to a person specific misdeeds or certain

unfavorable characteristics or qualities, or uttering certain other derogatory statements regarding a person. (Id. [citing Civ. Code, §46].) False statements charging the commission of crime, or tending directly to injure a plaintiff in respect to his or her profession by imputing dishonesty or questionable professional conduct are defamatory per se. (Burrill v. Nair (2013) 217 Cal.App.4th 357, 383.) In the case of slander or libel per se, the defamed party is not required to prove that she suffered any damages. (Mann, supra, 120 Cal.App.4th at 107 [slander per se]; Barnes-Hind, Inc. v. Superior Court (1986) 181 Cal.App.3d 377, 382 [libel per se].)

C.C.P.

§ 340(c) provides for a one-year statute of limitations for an action for libel and slander.

In

the First Cause of Action, Keuroghlian alleges that on June 10, 2024 and thereafter, Dginguerian made oral statements to third parties, including JHC's business associates, agents, and/or clients, accusing Keuroghlian of having "robbed" him and having taken advantage of him behind his back. (XC, ¶19.) Keuroghlian alleges that the statement that he "robbed" Dginguerian accused him of criminal conduct and dishonesty in the operation of his business, was false and unprivileged, and was made with knowledge of their falsity or with reckless disregard for the truth. (Id., ¶¶20-23.) Keuroghlian contends the statements injured him in his profession as JHC's CEO as they imputed criminal conduct and tended to injury him in his business/profession, thereby constituting slander per se under Civil Code, §46. (Id., ¶¶24-25.)

In the Second Cause of Action, Keuroghlian alleges that Dginguerian made false, written statements about his business conduct, personality, and professional behavior to JHC's current and former employees, and the employees reasonably believed the statements to be true. (XC, ¶¶27-28.) He contends Dginguerian's statements have been damaging and injurious to his career and professions and harmed his health due to stress. (Id., ¶29.) He asserts that because the statements imputed criminal conduct and tended directly to injury his business and profession, they constituted libel per se under Civil Code, § 45a. (Id., ¶30.)

Dginguerian argues that the claims are time-barred because the Cross-Complaint alleges that written statements were made on

Facebook on June 3, 5, and 10, 2024, and that oral statements were made on June 10, 2024. (See XC, ¶¶9, 19.) The Cross-Complaint was filed on May 7, 2026, which is over a year from the alleged statements.

However, Cross-Complainants rely on the relation back doctrine, arguing their claims are not barred by the statute of limitations. They rely on *ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.* (2016) 5 Cal.App.5th 69, arguing that the cross-complaint relates back to the time of the filing of Plaintiffs' initial Complaint on June 27, 2024.

In *ZF Micro*, there were a series of three cases: (1) the NSC lawsuit filed on April 25, 2002 by ZF Solutions against NSC; (2) the TAT lawsuit filed on February 14, 2005 by ZF Devices investors (including TAT) against ZF Solutions, where the court granted ZF's motion for leave to file a cross-complaint against TAT (filed March 18, 2009), but later the court had granted TAT's motion to sever ZF's cross-complaint and consolidated with the third lawsuit; and (3) the ZF Lawsuit filed on February 17, 2009 by the ZF Entities against Mark Putney (TAT's representative), which included a separately filed cross-complaint by ZF (originally filed in the TAT Lawsuit and consolidated with the ZF Lawsuit). On appeal, the Court of Appeal determined whether the tolling doctrine applied to ZF's cross-complaint. The appellate court stated that if tolling applied, then the cross-complaint would be deemed filed when TAT filed its complaint on February 14, 2005 (2nd lawsuit), and the cross-complaint would have timely been asserted less than four years after the claim arose on February 28, 2002 (when harm to ZF Devices occurred). Relying on the Supreme Court, the appellate court found: "the Supreme Court characterized the tolling doctrine as embracing all cross-claims by a defendant against the plaintiff, regardless of their relatedness to the claims asserted in the complaint"—irrespective of whether it is related to the matters asserted the complaint. (*ZF Micro Devices, Inc.*, supra, 5 Cal.App.5th 91, 92.)

As stated by the appellate court in *Sidney v. Superior Court* (1988) 198 Cal.App.3d 710:

The Trindade court pointed out: "It has consistently been held that the commencement of an action tolls the statute of limitations as to a defendant's then unbarred cause of action against the plaintiff" related to the accident or occurrence upon which the action is brought. [Citation.]

We are satisfied that the same “relation back” standard applies for an amended cross-complaint as for an initial cross-complaint. ...

... “ ‘The statute is a bar to the defendant's affirmative claim only if the period has already run when the complaint is filed. The filing of the complaint suspends the statute during the pendency of the action, and the defendant may set up his cross claim by appropriate pleading at any time.’ [Citation].” (Trindade v. Superior Court, supra, 29 Cal.App.3d at p. 860, 106 Cal.Rptr. 28; see also 3 Witkin, Cal.Proc.3d (1985) § 322 p. 353.) Early California cases show that the principle is well established that as long as a defendant's claim existed at the commencement of the action, the statute remains suspended throughout the action. (See e.g. McDougald v. Hulet (1901) 132 Cal. 154, 160–161, 64 P. 278.)

(Sidney v. Superior Court (1988) 198 Cal.App.3d 710, 715.)

Applying the relation-back doctrine, the Court finds that the Slander and Libel claims relate back to the filing of Plaintiffs' initial complaint on June 27, 2024. The written statements were made in June 2024 and August 2025, while oral statements were made on June 10, 2024. (Compl., ¶¶9, 11, 19.) The statute of limitation period would not have expired on the June 2024 and August 2025 statements by the time of the filing of the initial complaint, such that these cross-claims are timely pursuant to the relation back doctrine's tolling. (The Court also notes that the Libel Cause of Action would potentially be timely regardless of whether the relation back doctrine applied as Cross-Complainants did not isolate the Libel claim solely to the June 2024 written statements, but also alleged written statements in August 2025. The August 2025 statement would be timely based on a May 7, 2026 Cross-Complaint filing date.)

Lastly, Dginguerian argues that the relation back doctrine does not address the relation-back factors by showing that the amendment: “(1) rests on the same general set of facts; (2) involves the same injury; and (3) refers to the same instrumentality.” (Estrada v. Royalty Carpet Mills, Inc. (2022) 76 Cal.App.5th 685, 714–715.) However, Estrada is distinguishable as that dealt with the second

and third amended complaints, and did not discuss cross-complaints. Rather, the ZF Micro Court stated that the “tolling doctrine applies to both permissive and compulsory cross-complaints.” (ZF Micro, supra, 5 Cal.App.5th at 73.)

Thus, the demurrer to the First and Second Causes of Action based on the statute of limitations is overruled.

A.

First Cause of Action
for Slander – Overruled

Dginguerian argues that the Slander claim fails because the August 2025 statement in paragraph 11 was truthful and protected by the litigation privilege.

Paragraph 11 alleges in relevant part:

“In or around August 2025, Cross-Defendant published additional written statements on Facebook stating, among other things, that he was ‘suing his partner for fraud,’ that depositions would soon be conducted, that ‘everyone or almost everyone at JOHNNHART would be deposed,’ and that ‘the truth will be revealed.’” (XC, ¶11 [emphasis added].) However, paragraph 11 refers to written statements and not oral statements.

Furthermore, the Slander Cause of Action alleges that the oral statement at issue occurred on June 10, 2024 regarding accusations that Keuroghlian “robbed” Dginguerian and took advantage of him. (See XC, ¶19.)

As Dginguerian did not otherwise directly address the oral statement, the demurrer to the First Cause of Action is overruled.

B.

Second Cause of
Action for Libel – Overruled

The litigation privilege (Civil Code, § 47(b)) provides that a “publication or broadcast” made as part of a “judicial

proceeding” is privileged. “This privilege is absolute in nature, applying ‘to all publications, irrespective of their maliciousness.’ [Citation.] ‘The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.’ [Citation.] The privilege ‘is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.’” (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241.)

If applying Dginguerian’s arguments above to the Libel Cause of Action, the Court finds that paragraph 11 involves litigation matters—or matters in anticipation of litigation. The statements themselves do not make any false statements against Kueroghlian that accuse him of criminal conduct or dishonesty in his business. As alleged, Dginguerian’s statement that he intended to sue Kueroghlian for fraud lacks any specificity as to his profession or business. Dginguerian’s statements that depositions will occur (or that they would occur for JHC employees) and that the truth will be revealed are mere general statements that do not constitute libel per se.

Thus, there would potentially be a ground to sustain the demurrer on the Second Cause of Action if it relied solely on paragraph 11. However, the Cross-Complaint also alleges in paragraph 9 that four other written statements were made. As the statements in paragraph 9 were not addressed (with respect to the litigation privilege or otherwise), the demurrer is overruled. A demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy. (Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal. App. 4th 1028, 1047.) The Court notes that Dginguerian concurrently filed a motion to strike to address paragraphs 9 and 11. (See Dem. at p.4, fn.2.)

The demurrer to the Second Cause of Action is overruled.

MOTION TO STRIKE ANALYSIS:

A.

Litigation

Privilege Regarding Paragraph 11 – Granted with Leave to Amend

Paragraph 11 alleges: “In or around

August 2025, Cross-Defendant published additional written statements on Facebook stating, among other things, that he was ‘suing his partner for fraud,’ that depositions would soon be conducted, that ‘everyone or almost everyone at JOHNSHART would be deposed,’ and that ‘the truth will be revealed.’”

Dginguerian moves to strike the allegations in paragraph 11, arguing they are barred by the litigation privilege. As discussed above, the Court finds merit to this argument that paragraph 11 includes statements barred by the litigation privilege.

In opposition, Cross-Complainants argue that a motion to strike is improper to determine whether the statements are barred by the litigation privilege, constitute opinions, or are truthful/false, since the Court must accept the Complaint’s allegations that Dginguerian’s statements were false (XC, ¶¶20, 27) as true.

However, as currently alleged, the statements do not allege any false statement, but either constitute statements made in anticipation of litigation or opinions that depositions will occur and that the “truth” (whether in favor of Keuroghlian or Dginguerian) will be revealed.

The motion to strike paragraph 11 is granted with leave to amend.

B.

Statute of

Limitations Regarding Paragraphs 9, 11, and 19 – Denied

Dginguerian argues that paragraphs 9, 11, and 19 are time-barred. For the reasons discussed above, the motion to strike on this ground is denied.

C.

Truthful

Statements in Paragraphs 9, 19, and 20 – Denied in Part and Granted in Part

Dginguerian argues that paragraphs 9 and

19 are not actionable because they were not false statements. Paragraphs 9 and 19 allege:

- Paragraph 9(a): “On June 3, 2024, Cross-Defendant

posted: ‘Who wants to meet at one of our JohnHart offices this week and talk real estate?’ ”

- Paragraph 9(b): “On June 5, 2024, Cross-Defendant

posted: ‘Anyone want to make a day trip to Palm Springs this week? I still haven’t seen our JohnHart Real Estate Palm Springs office.’”

- Paragraph 9(c): “On June 5, 2024, Cross-Defendant

posted: ‘Who can guess which JohnHart office this was back in 2016, before I remodeled it?’ ”

- Paragraph 9(d): “On June 10, 2024, Cross-Defendant

posted statements accusing KEUROGHLIAN of having ‘rob[bed]’ him and ‘tak[en] advantage’ of him behind his back, further stating that ‘10 years of text logs’ and ‘10 years of emails’ would expose the truth and that the ‘clock is ticking.’ ”

- Paragraph 19: “On or about June 10, 2024, and on other

occasions thereafter, Cross-Defendant made oral statements to third parties, including business associates, agents, and/or clients of JOHNSHART, accusing KEUROGHLIAN of having ‘robbed’ him and having taken advantage of him behind his back.”

The Court notes in the Notice of Motion,

Dginguerian also moves to strike paragraph 20, but did not specifically address it in the memorandum of points and authorities.

Paragraph 20 alleges: “The statement that KEUROGHLIAN ‘robbed’

Cross-Defendant was false.” The Court

will consider this in connection with paragraphs 9(d) and 19.

Although Cross-Complainants allege that paragraphs

9(a)-(c)’s statements are defamatory per se, they have not shown how they impute

dishonesty or questionable professional conduct against Keuroghlian. Thus, these allegations will be stricken.

In contrast, statements that Keuroghlian "robbed" Dginguerian impute either criminal conduct, unfavorable characteristics, and/or injure Keuroghlian by imputing dishonesty or questionable professional conduct. As such, the motion is denied as to paragraphs 9(d), 19, and 20.

D.

Punitive
Damages

Dginguerian moves to strike the Prayer for Relief at ¶4, which requests punitive damages.

A complaint including a request for punitive damages must include allegations showing that the plaintiff is entitled to an award of punitive damages. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A claim for punitive damages cannot be pleaded generally and allegations that a defendant acted "with oppression, fraud and malice" toward plaintiff are insufficient legal conclusions to show that the plaintiff is entitled to an award of punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Specific factual allegations are required to support a claim for punitive damages. (Id.)

Civil Code § 3294 authorizes a plaintiff to obtain an award of punitive damages when there is clear and convincing evidence that the defendant engaged in malice, oppression, or fraud. Section 3294(c) defines the terms in the following manner:

(1)

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2)

"Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3)

"Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

The Court has reviewed the Cross-Complaint's allegations and finds that it fails to allege specific facts that Dginguerian acted with malice, oppression, and/or fraud. Other than the request for punitive damages in the prayer, there is no other reference to punitive damages in the Cross-Complaint. Thus, the motion to strike punitive damages is granted with leave to amend.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff/Cross-Defendant

David Dginguerian's Demurrer and Motion to Strike came on regularly for hearing on September 18, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The

DEMURRER TO THE CROSS-COMPLAINT is OVERRULED.

THE MOTION

TO STRIKE IS GRANTED WITH LEAVE TO AMEND AS TO PARAGRAPH 9(A)-(C) AND 11, AND TO THE PRAYER FOR DAMAGES AT PARAGRAPH 4.

THE MOTION TO STRIKE IS DENIED AS TO PARAGRAPHS 9(D), 19, AND 20. PLAINTIFF SHALL HAVE 20 DAYS' LEAVE TO AMEND.

PLAINTIFF/CROSS-DEFENDANT DAVID
DINGUERIAN TO PROVIDE NOTICE.

IT IS SO ORDERED.